

AMENDMENTS TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on January 12, 2018, effective April 1, 2018

1	Rule 4.336. Confidential Can't Afford to Pay Fine Forms	2
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1 **Rule 4.336. Confidential Can't Afford to Pay Fine Forms**

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3 **(a) Use of request and order forms**

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5 (1) A court uses the information on *Can't Afford to Pay Fine: Traffic and Other*
6 *Infractions* (form TR-320/CR-320) to determine an infraction defendant's
7 ability to pay under rule 4.335.

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9 (2) A court may use *Can't Afford to Pay Fine: Traffic and Other Infractions*
10 *(Court Order)* (form TR-321/CR-321) to issue an order in response to an
11 infraction defendant's request for an ability-to-pay determination under rule
12 4.335.

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14 **(b) Confidential request form**

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16 *Can't Afford to Pay Fine: Traffic and Other Infractions* (form TR-320/CR-320), the
17 information it contains, and any supporting documentation are confidential. The
18 clerk's office must maintain the form and supporting documentation in a manner
19 that will protect and preserve their confidentiality. Only the parties and the court
20 may access the form and supporting documentation.

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22 **(c) Optional request and order forms**

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24 *Can't Afford to Pay Fine: Traffic and Other Infractions* (form TR-320/CR-320) and
25 *Can't Afford to Pay Fine: Traffic and Other Infractions (Court Order)* (form TR-
26 321/CR-321) are optional forms under rule 1.35.

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28 *Rule 4.336 adopted effective April 1, 2018.*
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